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Case Name: *Jacobs v. TransPak, Inc.*
Case No.: 22CV409235

Before the Court is the Petition for Coordination filed by Petitioner Ricardo Villarreal Diaz. The petition seeks to coordinate five wage and hour actions brought by current and former employees against TransPak, Inc. The actions are currently pending in three separate superior courts, and the petition is unopposed. As discussed below, the Court GRANTS the petition for coordination.

I. Background

A. Coordination Proceedings

Petitioner Ricardo Villarreal Diaz filed the Petition for Coordination and Application for Immediate Stay on March 11, 2026. The Judicial Council assigned JCCP No. 5453, titled “TRANSPAK WAGE AND HOUR CASES,” on April 15, 2026. (JCC Letter, April 15, 2026.) The coordination motion judge was assigned by order dated April 28, 2026. (Notice of Order Assigning Coordination Motion Judge, filed May 5, 2026.) The Court set the coordination hearing and stayed all included actions pending that hearing by order dated May 21, 2026. (Notice and Order filed May 27, 2026, Ex. A.)

B. The Included Actions

The petition seeks to coordinate the following five actions. (Petition at pp. 1–2; Memorandum at p. 8.)

1. Villarreal Diaz PAGA Action

Villarreal Diaz v. TransPak, Inc. is PAGA representative action filed on December 12, 2025, in Alameda County Superior Court, Case No. 25CV159503. (Washington Decl., ¶¶ 3–8, Ex. A–B.) Petitioner submitted a notice to the Labor and Workforce Development Agency on

October 8, 2025, before filing his complaint in December. The complaint asserts nine Labor Code violations as a representative PAGA action and has not been deemed complex.

2. Jacobs Class Action

Jacobs v. TransPak, Inc. is a class action filed on December 29, 2022, in Santa Clara County Superior Court, Case No. 22CV409235. (Washington Decl., ¶¶ 9–21, Ex. C–M.) Plaintiff Macie Jacobs alleges nine Labor Code violations, and the Court deemed the action complex on January 11, 2023. On June 26, 2025, the Court granted TransPak’s motion to compel arbitration, dismissed the class claims, and stayed the action pending arbitration of Jacobs’s individual claims. (*Id.* at ¶ 18, Ex. L.) Jacobs has demanded arbitration before the American Arbitration Association, with an arbitration hearing set for December 1–4, 2026. (*Id.* at ¶ 19, Ex. M.) A further case management conference is set for January 13, 2027. (*Id.* at ¶¶ 19–20, Ex. M.)

3. Velazquez PAGA Action

Velazquez v. TransPak, Inc. is a PAGA representative action filed on August 11, 2023, in Alameda County Superior Court, Case No. 23CV040507. (Washington Decl., ¶¶ 22–40, Ex. N–Z, 1–4.) The Alameda court deemed the action non-complex on September 12, 2023. (*Id.* at ¶ 23, Ex. O.) The court denied TransPak’s motion to compel arbitration on February 4, 2025. (*Id.* at ¶ 36, Ex. 2.) TransPak filed a notice of appeal from that ruling on February 25, 2025. (*Id.* at ¶ 37, Ex. 3.) Trial is set for June 7, 2027. (*Id.* at ¶ 40.)

4. Vilorio Class and PAGA Action

Viloria v. TransPak, Inc. is a class and PAGA representative action filed on September 5, 2023, in San Joaquin Superior Court, Case No. STK-CV-UOE-2023-9508. (Washington Decl., ¶¶ 41–50, Ex. 5–11.) The action is labeled complex, and an alternative dispute resolution hearing is set for April 23, 2026. (*Id.* at ¶¶ 44, 48, Ex. 8.)

5. Gomez Class and PAGA Action